

Court No. - 40

Case :- WRIT - C No. - 4974 of 2023

Petitioner :- Mohd. Faizi

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Aman Kumar,Deepak Kumar
Pandey

Counsel for Respondent :- C.S.C.,Mukesh Kumar Singh

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Vivek Kumar Singh,J.

On the request of Sri Mukesh Kumar Singh, learned counsel for the respondent nos.2 and 3, the case is adjourned, so as to enable him to obtain instructions in the matter.

Put up this matter on 22.2.2023, as fresh.

Order Date :- 14.2.2023

Dev/-

Court No. - 21

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Petitioner :- Mohd. Faizi

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Aman Kumar, Deepak Kumar Pandey

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Heard Sri Deepak Kumar Pandey and Sri Aman Kumar for the petitioner and Sri Mukesh Kumar Singh for the respondent Electricity Department.

The instant petition has been filed challenging the temporary disconnection notice dated 23.12.2018 and the recovery citation dated 22.12.2022 issued by the respondent Electricity Department on account of the petitioner being in default in payment of the electricity charges.

The petitioner is disputing the correctness of the electricity bill dated 23.12.2018 wherein a sum of Rs.45,446.79/- is shown as arrears of electricity charges. The submission is that in the previous bill generated on 5.10.2018, no amount is mentioned as arrears of electricity charges and the bill of that month for a sum of Rs.328/- was duly paid. He further submits that the alleged arrears sought to be recovered now in the year 2022 is barred by Section 56 of the Electricity Act, 2003.

On the other hand, Sri Mukesh Kumar Singh, learned counsel for the respondent Electricity Department submits that the bill dated 5.10.2018 was on basis of average consumption and not actual meter reading. He further submits that consequently, in the next bill impugned herein, the arrears was duly shown. He further submits that the arrears of electricity charges have not become barred by time, as there is no evidence on record to show that the said amount was not being claimed in subsequent bills.

Section 56.2 of the Electricity Act, 2003 reads as follows:-

"56. (2) Notwithstanding anything contained in any other law for the time being in force, no sum due from any consumer, under this section shall be recoverable after the period of two years from the date when such sum became first due unless such sum has been shown continuously as recoverable as arrear of charges for electricity supplied and the licensee shall not cut off the supply of the electricity."

We have gone through the pleadings and we find that there is no assertion in the writ petition that the amount shown as arrears of electricity charges in the impugned bill was not shown as recoverable in the subsequent bills. Consequently,

we reject the contention that the amount being demanded from the petitioner has become barred by time.

In case the petitioner is disputing the correctness of the electricity bill, it is open to him to avail the remedy provided under Clause 6.5 of the Electricity Supply Code, 2005, as we do not wish to enter into the factual disputes.

The petition stands disposed of accordingly.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 22.2.2023

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